

12. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY & PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Petitioner Grange Insurance Association ("Petitioner") filed a Verified Petition to Perpetuate Testimony and Preserve Evidence on September 25, 2025 (the "Petition"). The matter was set for hearing on February 2, 2026.

Background

Petitioner seeks an order pursuant to California Code of Civil Procedure sections 2035.010 *et seq.* authorizing "pre-litigation discovery by taking oral depositions and/or preserving evidence for the purpose of perpetuating testimony relevant to an anticipated action involving Respondent Cynthia Gomez." Petition, p. 1.

Petitioner contends that it is "currently unable to bring or cause the anticipated action to be brought because Respondent has served a demand for arbitration on the Petitioner and a complaint has not yet been filed." Petition, p. 3.

Analysis

Code of Civil Procedure section 2035.010 provides that one "who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state" may obtain discovery for the purpose of perpetuating that person's own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed. Code Civ. Proc. § 2035.010. The methods permissible for such discovery are enumerated in Code of Civil Procedure section 2035.020. *Id.* at § 2035.020. Code of Civil Procedure section 2035.010 and the related statutes are referred to herein as the "Preservation of Evidence Statutes."

The Preservation of Evidence Statutes require the filing of a verified petition in the "superior court of the county of the residence of at least one expected adverse party, or, if no expected adverse party is a resident of the State of California, in the superior court of a county where the action or proceeding may be filed." Code Civ. Proc. § 2035.030. The statutes prescribe the matters to be set forth in the verified petition, including:

- (1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California.
- (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought.
- (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.
- (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.
- (5) The facts that the petitioner desires to establish by the proposed discovery.
- (6) The reasons for desiring to perpetuate or preserve these facts before an action has been

filed.

(7) The name or a description of those whom the petitioner expects to be adverse parties so far as known.

(8) The name and address of those from whom the discovery is to be sought.

(9) The substance of the information expected to be elicited from each of those from whom discovery is being sought.

Code Civ. Proc. § 2035.030(b)(1)-(9).

A petitioner is required to “...cause service of a notice of the petition under Section 2035.030 to be made on each natural person or organization named in the petition as an expected adverse party.”

Code Civ. Proc. § 2035.040. **This service shall be made in the same manner provided for the service of a summons. *Id.***

Service must be effected at least 20 days prior to the date specified in the notice for the hearing on the petition. Code Civ. Proc. § 2035.040(c).

If a court determines that all or part of the discovery requested under the Preservation of Evidence Statutes may prevent a failure or delay of justice, the court shall make an order authorizing that discovery. Code Civ. Proc. § 2035.050(a). The order shall identify any witness whose deposition may be taken, and any documents, things, or places that may be inspected, and any person whose physical or mental condition may be examined. *Id.* at § 2035.050(b).

Here, it is not evident to the Court that Petitioner is entitled to resort to the Preservation of Evidence Statutes where the matter in dispute is subject to arbitration, as Petitioner appears to concede. In such instances, arguably it cannot be said that there is an expectation that the petitioner will be a party to an action cognizable in a court of the State of California. While the Court is not aware of any California authorities on point, other courts have so held. See e.g. *In re Schumacher* (La. Ct. App., 4th Cir. 1980) 389 So. 2d 881, 882 (trial court erred in granting appellee's petition to perpetuate testimony because “[a]ppellee is bound to the arbitration provision of his agreement and is therefore unable to bring an action ‘cognizable in any court of this state’”).

Moreover, the present Petition does not attach any governing arbitration agreement or otherwise address the extent to which discovery may be available in the arbitration forum. If the arbitration forum provides for discovery or discovery-like mechanisms, it is not clear to the Court that resort to the Preservation of Evidence Statutes is necessary to prevent a failure or delay of justice.

In any event, the Court need not decide these issues at this stage because no Proof of Service has been filed reflecting service in conformance with Code of Civil Procedure section 2035.040.

Disposition

The Court finds and rules as follows:

1. The Petition shall be CONTINUED to a new hearing date to permit service to be done.
2. Petitioner is ORDERED TO APPEAR to address service and an appropriate continued hearing date.

13. 9:00 AM CASE NUMBER: MSC14-02341
CASE NAME: NAVY FEDERAL CREDIT UNION VS. BRAINERD
***HEARING ON MOTION IN RE: EARNINGS WITHHOLDING ORDER ON SPOUSE'S COMMUNITY**
PROPERTY WAGES
FILED BY: NAVY FEDERAL CREDIT UNION
TENTATIVE RULING:

Plaintiff and Judgment Creditor Navy Federal Credit Union ("Judgment Creditor") filed a Motion for Earnings Withholding Order on Spouse's Community Property Wages on September 12, 2025 (the "Motion for Spouse Wage Garnishment"). The Motion for Spouse Wage Garnishment was set for hearing on February 2, 2026. The motion was duly served and is unopposed.

Background

A money judgment was entered herein on August 4, 2015 against defendant and judgment debtor Lucinda M. Brainerd ("Judgment Debtor") in the total amount of \$52,305.09 (the "Judgment"). The Judgment was renewed in 2025.

Judgment Creditor has now filed its Motion for Spouse Wage Garnishment on the grounds that the Judgment remains unsatisfied and that the underlying obligation arise at a time when the Judgment Debtor was married to Timothy Brainerd.

A similar motion was filed in 2016 and granted. See Order dated September 22, 2016 (granting unopposed motion to authorize wage garnishment as to Timothy Brainerd).

Analysis

Family Code section 910(a) provides:

Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt.

See Fam. Code § 910(a).

To seek an earnings withholding order against a judgment debtor's spouse, a judgment creditor must obtain a court order upon a noticed motion. Code Civ. Proc. § 706.109 ("An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion.").

The Judgment Creditor's supporting declaration demonstrates that Lucinda M. Brainerd and Timothy Brainerd are wife and husband. See Declaration of Bryan M. Grundon filed September 12, 2025. This is corroborated by the Judgment Debtor's own statements in the attached debtor examination questionnaire. *Id.* at **Exhibit A**.

There is no opposition and no showing by the Judgment Debtor or the Judgment Debtor's spouse that underlying obligation and/or the Judgment for the debt is not an obligation of the community estate for which the community wages of the Judgment Debtor's spouse may be garnished in satisfaction.

Disposition

The Court finds and rules as follows: